

29-8-66

Bill No. 57 of 1966

THE CONSTITUTION (TWENTY-FIRST AMEND-
MENT) BILL, 1966

A

BILL

further to amend the Constitution of India.

Be it enacted by Parliament in the Seventeenth Year of the
Republic of India as follows:—

1. This Act may be called the Constitution (Twenty-first Amend- Short
ment) Act, 1966. title.

2. In article 324 of the Constitution, in clause (1), the words Amend-
, including the appointment of election tribunals for the decision of ment of
doubts and disputes arising out of or in connection with elections to article
Parliament and to the Legislatures of States" shall be omitted. 324.

STATEMENT OF OBJECTS AND REASONS

One of the important recommendations made by the Election Commission in its Report on the Third General Elections in India in 1962, and accepted by the Government relates to the abolition of election tribunals and trial of election petitions by High Courts.

If the proposal for a legislation to amend the Representation of the People Act, 1951, containing, *inter alia*, provisions for the trial of election petitions by High Courts instead of by election tribunals, as at present, is accepted by Parliament, it would be necessary to make a minor amendment in clause (1) of article 324 of the Constitution for the purpose of deleting therefrom the words "including the appointment of election tribunals for the decision of doubts and disputes arising out of or in connection with elections to Parliament and to the Legislatures of States".

The Bill is intended to give effect to the aforesaid object.

NEW DELHI;

The 16th August, 1966.

G. S. PATHAK.

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ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

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PART XV

ELECTIONS

324. (1) The superintendence, direction and control of the preparation of the electoral rolls for, and the conduct of, all elections to Parliament and to the Legislature of every State and of elections to the offices of President and Vice-President held under this Constitution, including the appointment of election tribunals for the decision of doubts and disputes arising out of or in connection with elections to Parliament and to the Legislatures of States shall be vested in a Commission (referred to in this Constitution as the Election Commission).

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(Shri G. S. Pathak, Minister of Law)